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Case Number: 22BBCV01209 Hearing Date: July 31, 2026 Dept: A

TENTATIVE RULING

JULY 31, 2026

MOTION FOR ATTORNEY'S FEES

Los Angeles Superior Court Case # 22BBCV01209

MP: Defendant/Cross-Defendant Laurel Canyon Collection, Inc.

RP: Plaintiff/Cross-Defendant Mehrin May

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

A.
Operative
Complaint

Plaintiff Mehrin May ("Plaintiff") alleges that she owned and occupied Unit 206 at 4240 Laurel Canyon Blvd. in Studio City since July 26, 2022, and that Defendants Soheil Kashani ("Kashani") and Cassandra Yekani ("Yekani") owned and resided upstairs at Unit 306. Plaintiff asserts she experienced daily disruptions and unreasonable noise. She contacted Kashani, Yekani, and Defendant Laurel Canyon Collection, Inc. ("Laurel" or "the HOA") several times in August 2022 regarding the noise. Plaintiff alleges that, to date, Defendants have failed to address her noise complaints.

The Second Amended Complaint ("SAC"), filed November 17, 2025, alleges: (1) Private Nuisance against Kashani and Yekani; and (2) Breach of Contract against all Defendants.

On March 6, 2026, the Court sustained without leave to amend Laurel's demurrer to the Second Cause of Action in the SAC—the only cause of action directed against Laurel.

B.
Operative Cross-Complaint

On May 4, 2023, Kashani and Yekani filed a Second Amended Cross-Complaint ("SAXC") against Plaintiff and Laurel for: (1) Breach of Contract against all Cross-Defendants; (2) Negligence against all Cross-Defendants; (3) Interference with Contractual Relations against May; (4) Negligent Interference with Economic Relations against May; (5) Private Nuisance against May; (6) Intentional Infliction of Emotional Distress against May; (7) Wrongful Detention against Laurel; (8) Breach of Fiduciary Duties against Laurel; (9) Breach of the Covenant of Quiet Enjoyment against Laurel; and (10) Breach of the Davis-Stirling Common Interest Development Act (Civil Code, §§ 4000, et seq.) against Laurel.

MOTION

ON CALENDAR:

On April 10, 2026, Laurel filed a Motion to be Determined the Prevailing Party and be Awarded its Attorneys' Fees and Costs.
On July 20, 2026, Plaintiff filed an opposition. On July 22, 2026, Laurel filed a reply.

LEGAL STANDARD:

Civil Code, § 5975 states:

(a) The covenants and restrictions in the declaration shall be enforceable equitable servitudes, unless unreasonable, and shall inure to the benefit of and bind all owners of separate interests in the development. Unless the declaration states otherwise, these servitudes may be enforced by any owner of a separate interest or by the association, or by both.

(b) A governing document other than the declaration may be enforced by the association against an owner of a separate interest or by an owner of a separate interest against the association.

(c) In an action to enforce the governing documents, the prevailing party shall be awarded reasonable attorney's fees and costs.

(Civ. Code, § 5975.)

ANALYSIS:

Laurel moves for $41,305.30 in attorney's fees and costs against Plaintiff pursuant to Civil Code, § 5975 in Plaintiff's action to enforce the governing HOA documents.

By way of relevant procedural background:

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On December 14, 2022, Plaintiff filed the Complaint, alleging that Laurel breached the CC&Rs by failing to intervene in noise complaints.

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On February 10, 2023, Plaintiff obtained Laurel’s default.

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On March 30, 2023, Laurel filed a motion to set aside the default, which the Court denied without prejudice on June 2, 2023.

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On August 4, 2023, Laurel filed a motion to set aside the default. On December 4, 2023, Laurel filed an ex parte application seeking to set aside the default or attach its responsive pleading to the pending motion to vacate. On December 15, 2023, the Court granted Laurel’s motion to set aside the default.

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On December 26, 2023, Laurel demurred to the Complaint, which the Court sustained with 20 days’ leave to amend on April 26, 2024.

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On May 15, 2024, Plaintiff filed the FAC.

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On September 17, 2024, Plaintiff obtained Laurel’s default for the second time.

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On December 31, 2024, Laurel filed a motion to set aside default. On March 7, 2025, the Court denied the motion without prejudice.

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On March 17, 2025, Laurel filed a motion to set aside default. On August 1, 2025, the Court granted the motion.

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On August 5, 2025, Laurel demurred to the FAC, which the Court sustained with 30 days' leave to amend in part and sustained without leave to amend in part on October 17, 2025.

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On November 17, 2025, Plaintiff filed the SAC (which asserted only the Second Cause of Action for Breach of Contract of the CC&Rs against Laurel).

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On December 23, 2025, Laurel demurred to the Second Cause of Action in the SAC, which the Court sustained without leave to amend on March 6, 2026. The Court dismissed Laurel from the action and directed Laurel to prepare the appropriate documents for the Court's signing regarding its dismissal from the action. (Mar. 6, 2026 Minute Order at p.7.)

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On March 26, 2026, the Court signed the Order Dismissing Defendant Laurel Canyon Collection, Inc. from the Action Filed by Plaintiff Mehrin May, ordering: (1) Laurel's Demurrer to Plaintiff's SAC sustained without leave to amend; (2) the Complaint's Second Cause of Action was the only claim asserted against Laurel such that Laurel is dismissed from the action; (3) Laurel "shall recover its costs and seek attorneys' fees as permitted by law and any applicable governing documents"; and (4) the dismissal does not affect the cross-complaint filed against Laurel. (Mar. 26, 2026 Order.) On May 11, 2026, Kashini and Yekani filed and served a Notice of Entry of the March 26, 2026 Order.

A.

Prevailing Party and Basis for Attorney's Fees

C.C.P. § 1032(a)(4) defines "prevailing party" as including "the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034."

Laurel argues that it is the prevailing party pursuant to Civil Code, § 5975 and C.C.P. § 1032 because it achieved its litigation objective by obtaining a dismissal of Plaintiff's claims that Laurel breached its duties under the CC&Rs. Laurel argues that after three rounds of demurrers, it succeeded in obtaining a dismissal, such that it qualifies as the prevailing party in this action.

In opposition, Plaintiff argues that the Court's March 6, 2026 minute order explained that the CC&Rs can form the basis of a contract between the parties, but that there was no contractual duties between Plaintiff and Laurel in context of the case (regarding noise complaints), such that Laurel cannot now attempt to rely on the CC&Rs as a governing document for the purposes of attorney's fees since the Court already ruled the contract/CC&Rs did not apply. (Opp. at p.5.)

In making its order on Laurel's demurrer to the SAC, the Court recognized that the CC&Rs constitute a contract between HOA/Laurel and its members (like Plaintiff) and created contractual duties, but that Plaintiff had not cited a specific CC&R provision that provided the basis for a contractual duty owed by Laurel to Plaintiff in the context of this case. (March 6, 2026 Minute Order at p.6.) Thus, the Court recognized that the CC&Rs are a governing document between Plaintiff and Laurel, but that Plaintiff had not sued on a valid term that would require Laurel to remediate noise complaints as desired by Plaintiff. This finding did not invalidate the entirety of the CC&Rs between the parties.

Here, Plaintiff sought to enforce the CC&Rs against Laurel but, as discussed by the Court in its ruling on the demurrers, Plaintiff failed to identify a valid basis to enforce the CC&Rs against Laurel. Although "prevailing party" is not defined in Civil Code, § 5975(c), the prevailing party in an action to enforce governing documents is entitled to reasonable

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attorney's fees and costs. (See e.g., Salehi v. Surfside III Condominium Owners' Assn. (2011) 200 Cal.App.4th 1146, 1155 [finding homeowner's association as the "prevailing party" when homeowner dismissed her action to enforce the CC&Rs].) Applying C.C.P. § 1032(4), Laurel is a defendant in whose favor a dismissal was entered and a defendant as against Plaintiff who did not recover any relief against Laurel. As such, the Court deems Laurel the prevailing party in this action and will allow Laurel to recover reasonable attorney's fees and costs in connection with defending this action.

A. Amount of Reasonable Attorney's Fees

Laurel seeks $37,675.85 in attorney's fees, $879.45 in litigation costs, and $2,750 in anticipated fees for a total of $41,305.30

Laurel provides the declaration of its counsel Jennifer Ryu. Ms. Ryu states that Laurel incurred fees for time spent reviewing/analyzing Plaintiff's pleadings, meeting and conferring, filing two motions to set aside default, filing three demurrers, and preparing for hearings. (Ryu Decl., ¶¶17-18.) The billing records are attached as Exhibit A. (Id., ¶20, Ex. A [Billing Records].)

1. Hourly Rate

Ms. Ryu (associate) and David C. Swedelson's (senior partner) hourly rates are $275/hour. (Ryu Decl., ¶19.) Ms. Ryu states the hourly rates requested are lower than the prevailing market rates for practicing community association litigation in Los Angeles County. (Id.) She states that her firm, SwedelsonGottlieb entirely limits its practice to representing homeowners associations. (Id.)

Plaintiff did not raise any objections to the hourly rates in her opposition.

The Court finds that hourly rates to be reasonable and, thus, will make no adjustment to the hourly rates requested.

2. Hours Billed

Ms. Ryu breaks down the fees request as follows:

- Pleadings and Motion Practice: $21,384.75
- Hearings and Court Conferences: $5,412.00
- Communications with Opposing Counsel: $3,276.50
- Client Communications/Reporting: $3,874.10
- Case Management/File Review/Litigation Administration: $3,728.50
- Costs: $879.45
- Anticipated Fees (to prepare this motion, review/reply to any opposition, and attend the hearing): $2,750
- Total Requested: $41,305.30

(Ryu Decl., ¶¶23-24.)

In opposition, Plaintiff argues that the following hours should be reduced as excessive and duplicative.

First, Plaintiff argues that defense counsel's billing for motions to set aside default judgment should be reduced because defense counsel incurred attorney's fees and additional costs by their failure to comply with C.C.P. rules.

The Court has reviewed the invoices detailing the February 2023 to July 2025 hours incurred to discuss the defaults, draft four motions to vacate the defaults, review and reply to oppositions, attend the hearings, and other tasks regarding the defaults. Based on the Court's review, this amounted to approximately 43 hours of work. While a denial of the motions in themselves will not be a basis to reduce the time incurred on these motions, the Court notes that multiple iterations of the motions had to be filed after two defaults—all of which could have been avoided had Laurel timely complied with its obligations to file responsive pleadings (as well as attached proposed responsive pleadings to its motions). Thus, the Court will reduce the time spent on these motions by 43 hours as some of the motions and the ex parte application could have been avoided. The Court is disinclined to pass these costs onto Plaintiff for Laurel and/or its counsel's mistake, inadvertence, surprise, or neglect.

Second, Plaintiff argues that time spent on demurrers with recycled arguments from prior demurrers, meet and confer letters, drafting reply briefs, etc. should be reduced. The Court will make a modest reduction of five (5) hours total to account for duplicative or excessive time billed, but otherwise finds that Laurel's counsel's time spent on the demurrers to be reasonable as they were ultimately dispositive.

Third, Defendant argues that its redacted billing entries amounting to $3,874.10 should not be excluded since the redactions were to protect attorney-client privileged and attorney work product information. (See Reply at p.7.) Defendant states that if the Court has concerns then it will provide the documents for an in camera review of the entries. The redactions span from the date of service, the biller, the description, quantity of hours, billing rate, and total billed. The nature of this time is not provided. At this time, the Court is inclined to reduce the time since no information is provided on the nature of these billed entries by $3,874.10 as neither Plaintiff nor the Court are able to evaluate these charges.

Total, the Court will reduce defense counsel's fees by $15,699.10 (= [43 hours x $275/hour] + [$3,874.10 for redacted billing]).

3.
Costs

"A prevailing
party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (CRC Rule 3.1700(a)(1).)

CRC Rule
3.1700(b)(1) states in relevant part: "Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum." CRC Rule
3.1700(b)(4) states: "After the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment."

Based on the
Court's review of the documents filed in this action, it does not appear that Laurel filed a Memorandum of Costs. By
way of this motion, Laurel seeks $879.45 in costs as party of its attorney's fees motion but filed no Memorandum of Costs mandated by the Rules of Court. As such, the Court declines to award costs.

The motion for attorney's fees is
granted in the amount of $24,726.75 (= $41,305.30 total requested - $15,699.10 reduction for attorney's fees - $879.45 reduction for the requested costs).

RULING:

In the
event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the

following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant/Cross-Defendant
Laurel Canyon Collection, Inc.'s Motion for Attorney's Fees came on regularly for hearing on July 31, 2026 with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

The Motion for ATTORNEY'S FEES IS GRANTED IN TOTAL AMOUNT OF $24,726.75, NOT INCLUSIVE OF COSTS.

DEFENDANT LAUREL CANYON COLLECTION, INC. TO PROVIDE NOTICE.

IT IS SO ORDERED.